

25STCV34038 25STCV34038

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Case Number: 25STCV34038 Hearing Date: August 25, 2026 Dept: 316

BACKGROUND

Plaintiff Jeremy Miller alleges

that he was physically attacked and assaulted by a security officer when attempting to board a bus in Los Angeles.

On November 20, 2025,

Plaintiff filed a complaint against Defendants Los Angeles County Metropolitan Transportation Authority, City of Los Angeles, County of Los Angeles, State of California, California Department of Transportation, and John Doe.

On June 26, 2026,

Defendant Los Angeles County Metropolitan Transportation Authority ("LA Metro") filed a demurrer. Defendant also filed an accompanying Motion to Strike.

On August 12, 2026,

Plaintiff filed an opposition to the demurrer. Plaintiff did not file an opposition to the Motion to Strike.

On August 18, 2026, LA

Metro filed a reply.

TENTATIVE RULING

Defendant's demurrer is OVERRULED

as to the first and second causes of action and SUSTAINED as to the third cause of action. To the extent Plaintiff can make additional allegations to support the third cause of action, leave to amend is granted. Otherwise, Plaintiff

may move for leave to amend as the case continues if Plaintiff later becomes aware of facts that support the cause of action. If Plaintiff is not amending the complaint at this time, Defendant LA Metro is ordered to file and serve an answer to the Complaint within twenty days of the Court's ruling.

Defendant's motion to strike is GRANTED. Plaintiff is granted leave to amend to include a request for attorney's fees if Plaintiff can allege a statutory or other appropriate basis to recover such fees.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (See *ibid.*; see also Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet
and Confer

Before filing a demurrer
or motion to strike, the demurring or moving party shall meet and confer with
the party who has filed the pleading in person, by telephone, or by video
conference. (Code Civ. Proc., § 430.41, subd. (a).) Furthermore, the demurring
or moving party must file a declaration detailing their meet and confer
efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).) “A determination by the
court that the meet and confer process was insufficient shall not be grounds to
overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, LA Metro discussed
this demurrer with Plaintiff by email correspondence. (See Kohrs Decl.,
¶ 3.) However, the parties did not meet and confer in person, by telephone, or by
videoconference. (See *ibid.*) Therefore, the meet and confer requirement
has not been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).) However,
the Court shall consider the merits of the demurrer. (See Code Civ. Proc., §
430.41, subd. (a)(4).)

II.
Government
Claims Act

The Court finds that Plaintiff's
allegations are sufficient to state a claim against LA Metro for the first and
second causes of action. Accordingly, the demurrer is overruled as to those
causes of action. The demurrer is sustained
as to the third cause of action.

Under the Government
Claims Act, “[P]ublic entities may only be held liable only if a
statute is found declaring them to be liable.” (*Hoff v. Vacaville Unified School District* (1998)
19 Cal.4th 925, 932.) One such statute establishing liability for
public entities is Government Code section 815.2, subdivision (a), which
states: “a public entity is liable for injury proximately caused by an act or
omission of an employee of the public entity within the scope of his employment
if the act or omission would, apart from this section, have given rise to a
cause of action against that employee or his personal representative.”

“In view of the fact that tort causes of action against public entities are now based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded.” (Richardson-Tunnell v. School Ins. Program for Employees (2007) 157 Cal.App.4th 1056, 1061 [citing Susman v. City of Los Angeles (1969) 269 Cal.App.2d 803, 809].)

Here, Plaintiff alleges he was physically assaulted by a “security officer, security guard and/or deputy” when attempting to board a bus at or near S Western Ave. and W Exposition Blvd.” (Compl., ¶ 15.) Plaintiff alleges that said security officer, guard, and/or deputy was acting within the course and scope of his employment engaged by Defendants (including LA Metro). (See id. at ¶ 20.)

A.

Employment
Allegations

LA Metro contends that each of the three causes of action is subject to demurrer because Plaintiff did not specifically allege that Defendant John Doe was an LA Metro employee.

The Court disagrees. Plaintiff alleges that John Doe was acting within the course and scope of his employment engaged by all Defendants (including LA Metro). (See Compl., ¶ 20.) This allegation must be assumed as true at this stage. As such, the allegations are sufficient to state a cause of action against LA Metro based on John Doe’s alleged conduct. (See Gov. Code, § 815.2, subd. (a.) What LA Metro is really arguing is made clear in the reply brief when it asserts that Plaintiff has not alleged which entity hired John Doe, which entity controlled his work, why he was present at the location and similar facts. The Court recognizes that Plaintiff’s assertion that John Doe was employed by all Defendants makes it difficult to ascertain who exactly hired, employed and controlled John Doe but Plaintiff has alleged that John Doe was employed by LA Metro and at this stage, the Court finds that to be sufficient. The issues LA Metro raises can be resolved through discovery and it is not reasonable to expect that Plaintiff would have such information at the outset of the case.

B.

Battery
and Negligence Causes of Action

The Court finds that Plaintiff's 1st and 2nd causes of action are not barred by the Government Claims Act. Plaintiff can pursue a tort claim against Defendant on the actions of its alleged employee. (See C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 868 ["In other words, 'the general rule is that an employee of a public entity is liable for his torts to the same extent as a private person (§ 820, subd. (a)) and the public entity is vicariously liable for any injury which its employee causes (§ 815.2, subd. (a)) to the same extent as a private employer.'"].) Pursuant to Government Code section 815.2, Plaintiff is entitled to pursue a tort claim against a public entity based on vicarious liability and the first two causes of action are premised on LA Metro's alleged vicarious liability for John Doe's tortious conduct.

The Court finds that the third cause of action is not sufficiently pled. That cause of action is for negligent hiring, training and supervision of John Doe. While such a claim may proceed against a public entity where sufficiently alleged, here the Complaint provides no facts to support the cause of action. There are not only no factual allegations as to the purported negligence in hiring, training and supervising John Doe, there are no factual allegations indicating that John Doe had engaged in improper conduct prior to the incident at issue that would put anyone on notice of the risk of misconduct. This is in contrast to the C.A. case, in which the Supreme Court allowed a similar claim where the complaint contained allegations of prior documented abuse by the perpetrator that was known by employees and administrators of the school district and that school district personnel failed to investigate or supervise the perpetrator despite this knowledge. There are no allegations here that LA Metro had any notice of misconduct by John Doe or any other facts that support the third cause of action.

CONCLUSION

For the foregoing reasons, Defendant's demurrer is OVERRULED as to the first and second causes of action and SUSTAINED as to the third cause of action. To the extent Plaintiff can make additional allegations to support the third cause of action, leave to amend is granted. Otherwise, Plaintiff may move for leave to amend as the case continues if Plaintiff later becomes aware of facts that support the cause of action. If Plaintiff is not amending

the complaint at this time, Defendant LA Metro is ordered to file and serve an answer to the Complaint within twenty days of the Court's ruling.

Defendant's motion to strike is GRANTED. Plaintiff is granted leave to amend to include a request for attorney's fees if Plaintiff can allege a statutory or other appropriate basis to recover such fees.